

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

**Justification Review Document
For Other than Full and Open Competition –
Federal Acquisition Regulation (FAR) Part 6**

Program/Equipment: Fiscal Years (FY) 2023 through 2027 Operational Tempo (OPTEMPO) spares and associated hardware and services to include labor, engineering, technical and integration support, testing and production to produce modernized spares associated with the Phased Array Tracking Radar to Intercept on Target (PATRIOT) Program, for [REDACTED]
[REDACTED]

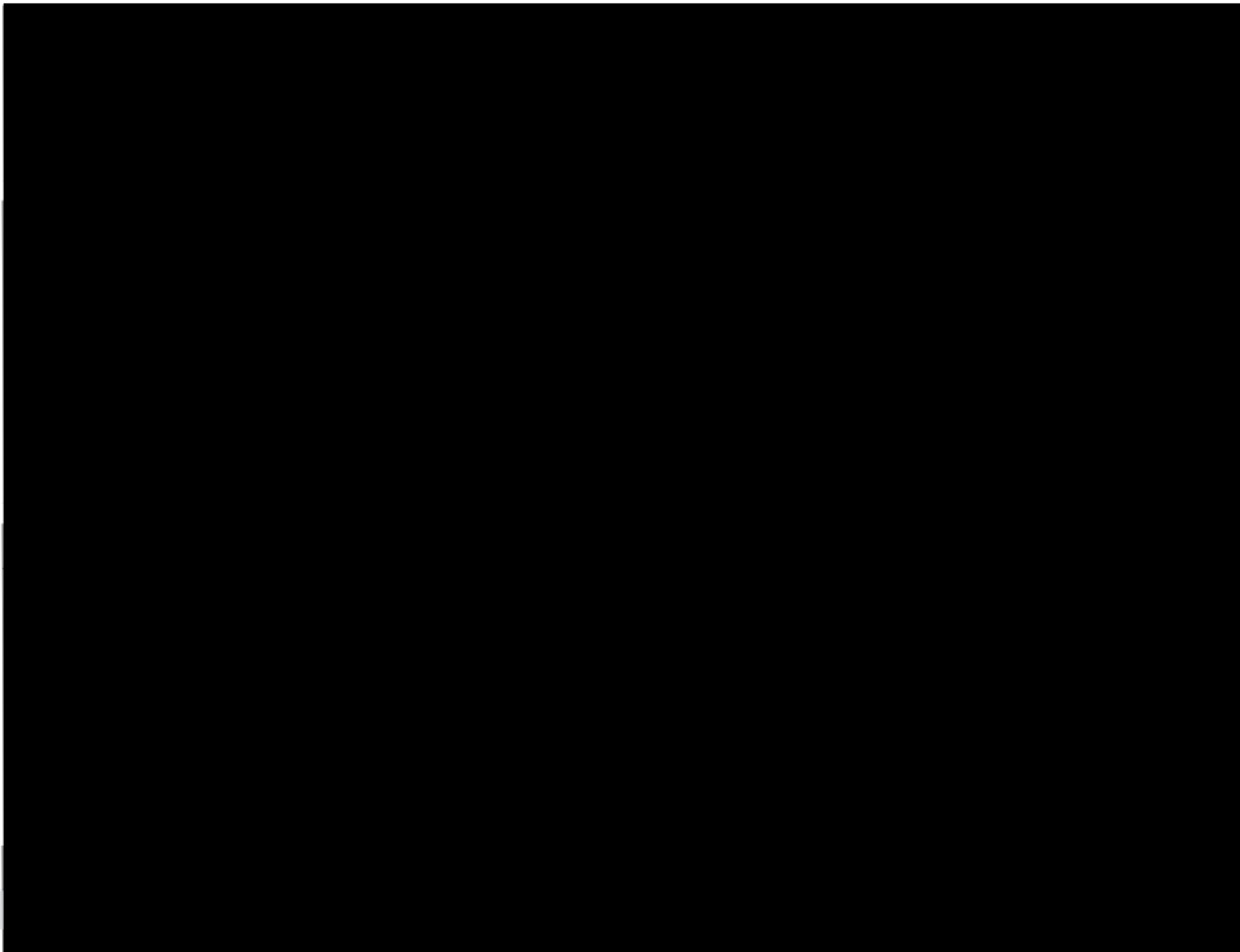
Authority: 10 United States Code (U.S.C.) 3204 (a)(1), as implemented by FAR Part 6.302-1(a)(2)(iii)(A), "Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements; Substantial Duplication of Cost to the Government That is Not Expected to Be Recovered Through Competition".

[REDACTED]



Reviews: I have reviewed this justification and find it adequate to support other than full and open competition.

Project Manager



**Justification and Approval
for Other than Full and Open Competition – FAR Part 6**

1. **Contracting Activity:** The Army Contracting Command-Redstone Arsenal (ACC-RSA), CCAM-LTC, Building 5250, Redstone Arsenal, Alabama, 35898-0000, is the agency responsible for the acquisition described below by other than full and open competition.

2. **Description of Action:** The Integrated Fires Mission Command (IFMC) Project Office (PO) requests a new sole source, non-source directed, Firm-Fixed-Price (FFP) contract [REDACTED]

3. **Description of Supplies/Services:** The contractor shall provide all labor, materials, production, engineering, technical and integration support, testing and production to produce the modernized spares. These spares [REDACTED]

Table 1, OPTEMPO Potential FMS Quantities, summarizes the estimated FMS production quantities and associated [REDACTED]
[REDACTED] The materials as stated will be consolidated, packed and shipped in lots throughout the period of performance (PoP) of the contract.

Table 1: OPTEMPO Potential FMS Quantities

Case Line	Nomenclature
001	Classified PATRIOT ASL, PLL, and HHB Spares
002	Unclassified PATRIOT ASL, PLL, and HHB Spares
003	COMM Spares for Fixed-Site and Communications Kit

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

alternative vendor would most likely require [REDACTED]

[REDACTED]

c. In order to obtain the IP rights and TDP, the USG would incur an estimated minimum cost of [REDACTED]. In order to build and test spares for interoperability in the PATRIOT system, the USG would incur an additional estimated cost in excess of [REDACTED]. The total estimated duplication of costs required to compete this requirement are likely to exceed [REDACTED]. The total estimated duplicated costs to the USG are not included in the program budget, further substantiating the results and recommendations of the economic analysis, indicating it is not economically feasible to compete this requirement.

d. The duplication of cost to the USG is not reasonable or cost effective, cannot be accomplished without a major impact to the program, and is not recoverable through competition. [REDACTED]

[REDACTED]

6. Efforts to Obtain Competition: The USG conducted market research and released a Request for Information (RFI)/Sources Sought Synopsis (SSS) via SAM.gov on 07 March 2022, as required by FAR 5.201. All respondents were considered and individually assessed as summarized under in paragraph 9.

a. **Effective Competition:** For reasons presented herein, effective competition is not feasible for this requirement. The USG conducted market research in accordance with (IAW) FAR Part 10. Paragraph 8, Market Research, summarizes specific actions and findings as documented in the Market Research Report (MRR). Market research comprised of market surveillance and investigation of OPTEMPO spares throughout the industry and market surveillance and investigation specific to the PATRIOT WS. [REDACTED]

[REDACTED]

b. **Subcontracting Competition:** Competition is expected at the subcontractor level. The Contracting Officer will encourage the contractor to compete subcontracts when it is reasonable to expect that competition is feasible and will produce equal or better performance with components at lower prices. The contract will include FAR 52.219-8, [REDACTED]

[REDACTED]

[REDACTED]

Utilization of Small Business Concerns, 52.219-9 Small Business Subcontracting Plan, 52.219-28, and 52.219-16 Liquidated Damages-Small Business Subcontracting Plan. Interested sources, including Small Business, Veteran-Owned Small Business, Service-Disabled Veteran-Owned Small Business, Historically Underutilized Business Zone Small Business, Small Disadvantaged Business and Women-Owned Small Business concerns which are identified through the synopsis will receive due consideration as required by law. A small business-subcontracting plan will be required per FAR Subpart 19.702.

7. **Actions to Increase Competition:** The agency does not expect competition based upon the results of the [REDACTED]

[REDACTED]

8. **Market Research:** The Acquisition Analyst conducted market research as defined by FAR Part 10, as documented in the Market Research Report/Commerciality Determination (MRR/CD) and was approved by the Contracting Officer on 09 September 2022. The IFMC PO conducted market research, which comprised of market surveillance and investigation of similar systems throughout the industry and specifically to the OPTEMPO spares capability.

IFMC PO Market surveillance included:

a. Personal knowledge in procuring these types of supplies/services. Personal knowledge obtained in February 2022 from market research of similar spares contracts to include spares contract [REDACTED]

[REDACTED]

b. Contact with knowledgeable persons and subject matter experts (SMEs) in the USG and Defense Industry. In January 2021, SMEs within the USG were contacted regarding this procurement and availability of similar systems in the commercial market. Individuals cited that [REDACTED]

[REDACTED] In January 2022, the IFMC Ground Support Equipment International Program Manager reviewed recent market [REDACTED]

[REDACTED]

research results for similar or identical supplies/services to [REDACTED]

[REDACTED]

c. In order to comply with the Under Secretary of Defense for Acquisition, Technology and Logistics memo entitled "Actions to Improve Competition," the IFMC PO reviewed similar efforts which included [REDACTED]

[REDACTED]

[REDACTED] and the requirement cannot be met commercially; thus, use of off the shelf commercial acquisition is not appropriate and FAR Part 12 does not pertain to this acquisition.

d. In accordance with Defense Federal Acquisition Regulation Supplement (DFARS) 205.205-71, DFARS 206.302-1(d), and DFARS Procedures, Guidance and Information 206.302-1(d), a RFI/SSS was posted to SAM.gov on 07 March 2022 and closed 23 March 2022 for OPTEMPO spares. The result was twelve responses. The IFMC PO reviewed the responses to the RFI/SSS SAM.gov notice and determined that the respondents did not have the necessary knowledge, experience, or capabilities to meet the timeline and requirements of this requirement. Collectively, the market research conducted for this effort substantiates the finding that there are no commercial items or qualified sources capable of [REDACTED]

[REDACTED]

9. **Interested Sources:** As a result of the RFI/SSS released to industry through SAM.gov on 07 March 2022, twelve responses were received. Of the twelve respondents, [REDACTED]

[REDACTED]

[REDACTED]

Five of the twelve respondents [REDACTED]

[REDACTED]

[REDACTED]

Overall, the respondents did not have the necessary knowledge, experience, or capabilities to meet the [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

10. **Other Facts:**

a. Procurement History. There have been no prior acquisitions for the same overall requirements as [REDACTED]

[REDACTED]

b. Acquisition Data Availability. [REDACTED]

[REDACTED] TDPs, specifications, and engineering descriptions suitable for full and open competition would have been developed during the material solution analysis phase of development. Funding and equipment are not available to develop these resources for full and open competition. The [REDACTED] has instituted processes and procedures to ensure that the technical data and rights in data for all programs are effectively managed to achieve program objectives. The [REDACTED] currently includes requirements in all applicable and resultant contracts for data assertion and markings IAW DFARS 252.227-7013, -7014, -7015, -7016, -7017, -7019, -7028 and -7030 as applicable.

c. Subcontracting Competition. The contract will include FAR 52.219-8, Utilization of Small Business Concerns; 52.219-9 Small Business Subcontracting Plan, 52.219-28, and 52.219-16 Liquidated Damages-Small Business Subcontracting Plan. Interested sources, including Small Business, Veteran-Owned Small Business, Service-Disabled Veteran-Owned Small Business, Historically Underutilized Business Zone Small Business, Small Disadvantaged Business and Women-Owned Small Business concerns which are identified through the synopsis will receive due consideration as required by law. A small business-subcontracting plan will be required per FAR Subpart 19.702. The prime contractor is encouraged to compete all subcontracts where possible.

[REDACTED]

[REDACTED]

11. Technical Certification: I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

[REDACTED]

12. Requirements Certification: I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

[REDACTED]

13. Fair and Reasonable Cost Determination: I hereby determine that the estimated cost and price to the USG for this contract action will be fair and reasonable. The basis for this determination will be a cost/price analysis, technical evaluation, comparison of proposed prices with an independent USG cost estimate and negotiations. Additionally, certified cost or pricing data will be obtained pursuant to FAR 15.403-4.

[REDACTED]

14. Contracting Officer Certification: I certify that this justification is accurate and complete to the best of my knowledge and belief.

[REDACTED]

[REDACTED]

APPROVAL

Based on the foregoing justification,

[REDACTED]